

does not decide otherwise in cases where admission of the public could have serious and unjustified disadvantages, in particular for a party to the proceedings. The board held that as the debate dealt with the request for exclusion of certain documents from file inspection, which had been excluded provisionally, the public could not be admitted to the hearing on this point. Otherwise, the purpose of the provisional exclusion would have been frustrated. In such a situation, the danger of serious and unjustified disadvantages had to be deemed to exist.

In J 2/01 (OJ 2005, 88), at the beginning of the oral proceedings, the Legal Board informed the appellant that these proceedings were not public. Although the requirements of R 48(2) EPC 1973 for non-publication of the application appeared not to have been met, the application in suit had in fact not been published. Since Art. 116 EPC required publication as a prerequisite for oral proceedings to be public, the Legal Board had corrected its original summons to public oral proceedings.

Referring to R 144(a) EPC (R 93(a) EPC 1973), boards excluded the public from oral proceedings on the matter of objections to members of the boards in T 190/03 (OJ 2006, 502), R 2/14 of 17 February 2015, R 8/13 of 20 March 2015 and T 1938/09 of 2 October 2014. In T 190/03, at the end of the oral proceedings, the public was readmitted and the decision was given.

7.3. Oral proceedings held by videoconference

7.3.1 Legal basis

In the communications concerning oral proceedings before the boards of appeal entitled "Restrictions due to the coronavirus (COVID-19) pandemic and introduction of videoconferencing technology in appeal proceedings", published on the website of the Boards of Appeal on 6 May, 15 May, 25 May 2020, etc., the boards of appeal informed the public of the possibility of conducting oral proceedings before the board using videoconferencing technology, which would require agreement from all parties.

According to new Art. 15a RPBA 2020, which entered into force on 1 April 2021, oral proceedings can be held by videoconference if the Board considers it appropriate to do so, either upon request by a party or of its own motion (OJ 2021, A19). The agreement of the parties is no longer required. See also G 1/21 (OJ 2022, A49).

Several publications in the OJ concerned oral proceedings by videoconference before the departments of first instance: before opposition divisions, see OJ 2020, A121; before examining divisions, see OJ 2020, A134; before the Receiving Section, see OJ 2021, A49; before the Legal Division, see OJ 2021, A50.

7.3.2 Oral proceedings by videoconference in case of general emergency – G 1/21

In T 1807/15 the board referred the following question to the Enlarged Board: Is the conduct of oral proceedings in the form of a videoconference compatible with the right to oral proceedings as enshrined in Art. 116(1) EPC if not all of the parties to the proceedings

have given their consent to the conduct of oral proceedings in the form of a videoconference?

In G 1/21 of 16 July 2021, the Enlarged Board held that during a general emergency impairing the parties' possibilities to attend in-person oral proceedings at the EPO premises, the conduct of oral proceedings before the boards of appeal in the form of a videoconference is compatible with the EPC even if not all the parties to the proceedings have given their consent to the conduct of oral proceedings in the form of a videoconference. The Enlarged Board found it justified to limit the scope of the referral to oral proceedings before the boards of appeal and to take the specific context of the referral, a general emergency (i.e. the COVID-19 pandemic), into account.

The Enlarged Board interpreted Art. 116 EPC and taking in particular the object and the purpose of oral proceedings into account, namely to give parties an opportunity to plead their case orally, came to the conclusion that oral proceedings in the form of a videoconference were oral proceedings within the meaning of Art. 116 EPC. Even if the videoconference format has certain shortcomings, it provides parties with an opportunity to present their case orally.

The Enlarged Board then considered whether a videoconference is equivalent to an in-person hearing and whether it is a suitable format for conducting oral proceedings. It acknowledged that oral proceedings by videoconference cannot, at least for the time being, provide the same level of communication as is possible when all participants are physically present in the courtroom. The Enlarged Board concluded that the limitations currently inherent in the use of video technology made this format suboptimal for oral proceedings, though normally not to such a degree that a party's right to be heard or right to fair proceedings was seriously impaired.

The Enlarged Board also discussed whether a party has a right to oral proceedings in person. Parties wishing to have oral proceedings held in person could only be denied this option for good reasons. Firstly, there must be a suitable alternative. If in a particular case a videoconference is not suitable, the oral proceedings will need to be held in person. Secondly, there must also be circumstances specific to the case that justify the decision not to hold the oral proceedings in person. These circumstances should relate to limitations and impairments affecting the parties' ability to attend oral proceedings in person at the premises of the EPO. In the case of a pandemic, such circumstances could be general travel restrictions or disruptions of travel possibilities, quarantine obligations, access restrictions at the EPO premises, and other health-related measures aimed at preventing the spread of the disease. Thirdly, the decision whether good reasons justify a deviation from the preference of a party to hold the oral proceedings in person must be a discretionary decision of the board of appeal.

In T 1197/18 the board concluded that the pandemic was a general emergency and that, as had been ruled in G 1/21, its holding oral proceedings via a videoconference in these circumstances was compatible with the EPC, even if the appellant had not given their consent.

In T.2474/17 the board stated that the conclusion to hold the oral proceedings as a videoconference was in line with Art. 15a(1) RPBA 2020 and in line with the Enlarged Board of Appeal's decision G.1/21. According to the Enlarged Board's reasoning, the pandemic was a "general emergency impairing the parties' possibilities to attend in-person oral proceedings at the EPO premises", thus constituting "good reasons" for the conduct of oral proceedings by videoconference, despite the appellant's explicit wish for in-person oral proceedings. The continued delay of holding oral proceedings during a pandemic is further ground to overrule a party's wish to hold oral proceedings in person.

7.3.3 Decisions during the COVID-19 pandemic and before G 1/21

In T.1378/16 the oral proceedings that took place on 8 May 2020 were the first held by videoconference in the history of the boards of the appeal. The board considered it appropriate to address the legal basis for oral proceedings within the meaning of Art. 116 EPC: In the past, the boards have rejected requests for oral proceedings to be held by videoconference, mainly on the grounds that there was no "general framework" to this effect, as no provision was made for suitable ViCo rooms and for the public to attend ViCo-based hearings (see e.g. T.1266/07, T.2068/14). At the same time, the boards have held that Art. 116 EPC does not mandate oral proceedings taking place with the physical presence of the parties. Several boards have considered that it was within their discretion to decide whether or not to select this form for the parties' oral submissions (T.2068/14, T.195/14, T.932/16). See also T.1879/16.

T.492/18 dealt with the issue of the attendance of an accompanying person by means of video connection. The oral proceedings took place in person. The board stated that the possibility of holding oral proceedings by video conference was predicated by the boards' ability to offer the necessary technical facilities. At the time the decision was taken, facilities for holding oral proceedings in mixed format, with members of a party attending at the Office's premises and other members attending remotely, were not available to the board for the oral proceedings. For these reasons, the board was not able to accede to the appellant's request.

T.2320/16 was the first case before the boards of appeal for which oral proceedings by videoconference were held without the agreement of a party to the appeal proceedings (this decision predated T.1807/15). The board stated that Art. 116 EPC did not define the exact form of oral proceedings, other than the proceedings being oral in nature. In particular, it did not explicitly exclude oral proceedings by videoconference.

In T.328/16 the board refused a request, filed after the oral proceedings by videoconference had been opened, for their cancellation and the scheduling of a new date for oral proceedings attended by all parties in person. It informed the parties that switching from in-person oral proceedings to oral proceedings by videoconference was not only in the interests of keeping all parties safe in view of what was happening with the COVID-19 pandemic but also in line with the protective measures in place in the European Patent Organisation's host state and throughout the rest of Europe. Granting the request would have delayed the proceedings considerably, especially given that oral proceedings initially planned for 8 May 2020 had already had to be rescheduled as a result of the pandemic.

The board had discretion to hold oral proceedings under Art. 116 EPC by videoconference either at a party's request or, as here, at its own instance if it considered this expedient. The boards' practice since May 2020 of conducting oral proceedings by videoconference had been codified in new Art. 15a RPBA 2020.

In T 2030/18 the board held that it was justified to hold oral proceedings by videoconference following the Enlarged Board of Appeal's order in G 1/21 of 16 July 2021 (OJ 2022, A49) despite the appellant having argued in favour of oral proceedings being held in-person. In T 2817/19 in application of the order of the Enlarged Board of Appeal in case G 1/21, which allowed the conduct of oral proceedings before the boards of appeal in the form of a videoconference during a general emergency even if not all of the parties to the proceedings had given their consent thereto, the respondent's request that the oral proceedings be held in person was rejected.

In T 245/18 the appellant (opponent) challenged the board's decision to go ahead as planned with holding the oral proceedings by videoconference even though one of the parties had not consented, instead of staying the proceedings until the Enlarged Board of Appeal had issued its decision in G 1/21. The board held that by setting a date under Art. 15(9) RPBA 2020, instead of announcing its decision straight away, it had ensured that, in this particular case, its decision to hold the oral proceedings by videoconference would not conflict with the Enlarged Board's then still pending decision. Had the outcome of the since issued decision been different, the board, instead of taking a final decision, could have set a new date for oral proceedings and reopened them. The clarification in G 1/21 that it was at any rate permissible to hold oral proceedings by videoconference without a party's consent in emergency situations was, the board found, applicable here. There had undoubtedly been such an emergency at the time at issue in this case, given that the COVID-19 pandemic declared in March 2020 had been far from over and was still entailing significant travel restrictions in May 2021. It was therefore not necessary to reopen the oral proceedings.

7.3.4 Case law prior to the COVID-19 pandemic

Prior to the first communication concerning oral proceedings before the boards of appeal entitled "Restrictions due to the coronavirus (COVID-19) pandemic and introduction of video-conferencing technology in appeal proceedings", published on the website of the boards of Appeal on 6 May 2020, and prior to the introduction of Art. 15a RPBA 2020, oral proceedings via video conference were not possible before the boards of appeal.

The boards previously rejected requests for oral proceedings to be held by videoconference, see T 1266/07 (lack of general framework on this matter). It would have been necessary to ensure that the use of video conferencing was reconciled with the requirement that oral proceedings before the boards be public. See inter alia T 37/08, T 663/10, T 1930/12, T 1942/12, T 1081/12, T 2313/12, T 1529/14, T 932/16.

In T 2068/14 the board held that it had discretion regarding the organisation of oral proceedings, including, holding them by video conference, considering in particular whether the case in hand was ex parte or inter partes. A further important issue was the

availability of suitable rooms for oral proceedings before the board by video conference. This would typically require that provision also be made for the public (see T.1266/07). See also T.2468/10, T.928/11, T.1081/12, T.2313/12, T.932/16).

7.4. Computer-generated presentations and other visual aids

According to established case law, a computer-generated slideshow presentation is in essence the presentation of written material (T.1122/01; T.1110/03, OJ 2005, 302; T.1556/06; T.601/06). It is also established case law that the principles relating to the use of visual aids such as flip charts should also be applied to PowerPoint presentations. Therefore, a party wishing to use such a presentation should announce this intention early enough before the oral proceedings and should send both the board and the other parties a copy. Any objections could then be raised and considered at the oral proceedings before the presentation was given, and a decision could be made if need be (T.1122/01, T.1110/03, T.555/06, T.608/08).

In T.1122/01 the board pointed out that a PowerPoint presentation could be a way of introducing new means of evidence, or it could lead to a completely new and unexpected presentation of the case by a party. There was therefore a risk of the other parties being caught unawares by this, of new procedural issues being raised, and of the oral proceedings becoming protracted. See also T.1110/03, T.555/06.

In T.373/05, a few days prior to oral proceedings before the board the appellant (patent proprietor) asked for a screen for showing PowerPoint slides at the hearing, without however saying what the slides were about. At the start of the oral proceedings, it distributed paper versions of the slides, setting out arguments about the admissibility of the respondent's opposition and regarding sufficiency of disclosure. The board took the view that since they contained no new facts, their late submission was no reason to disregard them under Art. 114(2) EPC 1973. On the contrary, it felt that presenting the appellant's arguments visually on paper had also helped the respondents to prepare their responses. See also T.1528/12.

In the board's view in T.1556/06, the opposition division has discretion as to the way oral proceedings were conducted. It was not a wrongful exercise of this discretion, and thus not a procedural violation, to refuse to allow a party to use a PowerPoint presentation during oral proceedings if the party was not thereby prevented from presenting its arguments orally. See also T.608/08.

7.5. Sound recording

In R.17/09 the Enlarged Board held that to allow or refuse a recording of the oral proceedings was a matter of discretion for the board concerned (see also T.1938/09 of 9 March 2015). Refusal to allow recording could not be treated as a procedural violation.

In T.1938/09 of 9 March 2015 the board held that, even if a sound recording of the proceedings were made, there would have been no legal basis for making it available to the parties.